

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #13	CCRB Case #: 201803488	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/12/2018 6:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/12/2019	Precinct: 75		
Date/Time CV Reported Mon, 05/14/2018 1:18 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/14/2018 1:18 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Rene Castellano	2601	946836	NARCBBN
2. SGT Alexandru Anghel	00240	934403	NARCBBN
3. DT3 Cameel Quallis	825	949516	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Jamar Goddard	00692	948033	NARCBBN
2. LCD Mark Jablonski	00000	922540	NARCBBN
3. CPT Timothy Wilson	00000	924628	NARCBBN
4. DT1 Waliur Rahman	06428	907113	NARCBBN
5. DT3 Charles Ingrassia	1149	938694	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Alexandru Anghel	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Alexandru Anghel refused to provide his name to § 87(2)(b)	A . Unsubstantiated
B . DT3 Rene Castellano	Abuse: Detective Rene Castellano entered § 87(2)(b) Basement floor, in Brooklyn.	B . Exonerated
C . DT3 Rene Castellano	Abuse: Detective Rene Castellano searched § 87(2)(b) Basement floor, in Brooklyn.	C . Exonerated
D . DT3 Rene Castellano	Abuse: Detective Rene Castellano entered § 87(2)(b) in Brooklyn.	D . Unsubstantiated
E . DT3 Rene Castellano	Abuse: Detective Rene Castellano searched § 87(2)(b) in Brooklyn.	E . Unsubstantiated
F . SGT Alexandru Anghel	Abuse: Sergeant Alexandru Anghel searched § 87(2)(b) in Brooklyn.	F . Unsubstantiated
G . SGT Alexandru Anghel	Discourtesy: At § 87(2)(b) in Brooklyn, Sergeant Alexandru Anghel spoke discourteously to § 87(2)(b)	G . Unsubstantiated
H . SGT Alexandru Anghel	Discourtesy: At the 75th Precinct stationhouse, Sergeant Alexandru Anghel spoke discourteously to § 87(2)(b)	H . Unsubstantiated
I . SGT Alexandru Anghel	Discourtesy: At the 75th Precinct stationhouse, Sergeant Alexandru Anghel spoke discourteously to § 87(2)(b)	I . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
J . DT3 Cameel Quallis	Discourtesy: At the 75th Precinct stationhouse, Detective Cameel Quallis spoke discourteously to § 87(2)(b)	J . Unsubstantiated
K . DT3 Rene Castellano	Abuse: At § 87(2)(b) in Brooklyn, Detective Rene Castellano damaged § 87(2)(b)'s property.	K . Unsubstantiated

Case Summary

On May 14, 2018, § 87(2)(b) filed this complaint with the CCRB over the phone on behalf of herself, her landlord § 87(2)(b)'s children, § 87(2)(b) and § 87(2)(b) and § 87(2)(b)'s wife, § 87(2)(b). On May 14, 2019, a duplicate complaint was filed by § 87(2)(b) via the CCRB Call Processing System.

On May 12, 2018, at approximately 6:30 p.m., Det. Rene Castellano, Sgt. Alexandru Anghel, Det. Jamar Goddard, and Det. Cameel Quallis of the Narcotics Borough Brooklyn North team arrived at § 87(2)(b) in Brooklyn. § 87(2)(b) asked Sgt. Anghel for his name and Sgt. Anghel ignored the request (**Allegation A – Abuse of Authority**, § 87(2)(g)). Det. Rene Castellano and additional members of the Narcotics Borough Brooklyn North team, including Det. Cameel Quallis, Sgt. Angel, and Det. Goddard, breeched the basement door and entered and searched the basement floor of the dwelling (**Allegation B and C – Abuse of Authority** – § 87(2)(g)). The officers also entered and searched the first and second floor of the dwelling (**Allegation D and E – Abuse of Authority**, § 87(2)(g)). Sgt. Anghel retrieved § 87(2)(b)'s phone from the § 87(2)(b) (**Allegation F – Abuse of Authority**, § 87(2)(g)).

At § 87(2)(b) and the 75th Precinct stationhouse, Sgt. Anghel spoke discourteously to § 87(2)(b) (**Allegation G and H – Discourtesy**, § 87(2)(g)). At the 75th Precinct stationhouse, Sgt. Anghel and Det. Quallis spoke discourteously to § 87(2)(b) (**Allegation I – Discourtesy**, § 87(2)(g)). **Allegation J – Discourtesy, alleged** § 87(2)(g)). Det. Castellano damaged § 87(2)(b)'s prosthetic leg (**Allegation K – Abuse of Authority**, § 87(2)(g)).

§ 87(2)(b) and § 87(2)(b) were arrested and charged § 87(2)(b). The District Attorney's Office declined to prosecute the charges against § 87(2)(b) and § 87(2)(b). § 87(2)(g) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) provided cell phone video footage that captured a portion of this incident to the investigation. The original file can be found in IA# 25 (**Board Review 03**) and summarized in IA 162 (**Board Review 22**).

Findings and Recommendations

Allegation A - Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Alexandru Anghel refused to provide his name to § 87(2)(b)

It is undisputed that Det. Castellano obtained a search warrant for the basement floor of § 87(2)(b) that Sgt. Anghel and Det. Goddard dressed up as officers from the 75th Precinct, went to § 87(2)(b) and lied to § 87(2)(b) by saying they were looking for § 87(2)(b) in relation to a prior domestic violence incident.

§ 87(2)(b) and § 87(2)(b) were all consistent in their statements that § 87(2)(b) told Sgt. Anghel that § 87(2)(b) was not home, and that he requested Sgt. Anghel's name and stated that he would give it to § 87(2)(b) when he returned home. Sgt. Anghel ignored the request (**Board Review 04, 05, 06**). § 87(2)(b) testified that she was in the basement of the home and therefore, not in a position to witness this portion of the incident (**Board Review 07**). § 87(2)(b) testified that he was not at the location during the execution of the search warrant. (**Board Review 08**). § 87(2)(b) was uncooperative with the investigation (see IAs for contact attempts).

Sgt. Anghel testified that one of the family members, he did not recall whom, asked for his name and shield number, and that he provided the information to that person verbally (**Board Review 10**). Det. Goddard stated that no one requested Sgt. Anghel's name or shield number (**Board Review 12**).

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Allegation B – Abuse of Authority: Detective Rene Castellano entered § 87(2)(b) Basement floor, in Brooklyn.

Allegation C – Abuse of Authority: Detective Rene Castellano searched § 87(2)(b) Basement floor, in Brooklyn.

Allegation D – Abuse of Authority: Detective Rene Castellano entered § 87(2)(b) in Brooklyn.

Allegation E – Abuse of Authority: Detective Rene Castellano searched § 87(2)(b) in Brooklyn.

It is undisputed that Det. Castellano obtained a search warrant for the basement floor of § 87(2)(b) and for § 87(2)(b) and that officers from the Narcotics Borough Brooklyn North team entered the basement, first, and second floors of § 87(2)(b) which is a single family home with an internal staircase connecting the basement floor to the first floor. It is further undisputed that the basement of § 87(2)(b) was searched.

§ 87(2)(b) and § 87(2)(b) were all consistent in their statements that Sgt. Anghel and Det. Goddard knocked on the door of the basement and asked § 87(2)(b) for § 87(2)(b) § 87(2)(b) called upstairs for § 87(2)(b) who entered the basement from the first floor through the interior staircase, and told the officers that they needed to knock on the ground floor front door to speak with her father, § 87(2)(b) who was the home owner. The officers did this and spoke with § 87(2)(b) § 87(2)(b) returned to the first floor. Sgt. Anghel told § 87(2)(b) that § 87(2)(b) was not home and closed the door. The officers then returned to and breeched the basement door and cleared the entire house, including the first and second floors. An officer handcuffed § 87(2)(b) who was in the basement, and § 87(2)(b) and § 87(2)(b) were handcuffed from upstairs and brought down to the basement (**Board Review 04, 05, 06, 07**).

§ 87(2)(b) testified that since he was in the basement during the incident, he did not see where officers searched on the first and second floors. However, when § 87(2)(b) returned upstairs, he saw that unspecified items were moved around in every room on the first floor and that the officers had searched the entire house, except § 87(2)(b)'s bedroom on the second floor **(Board Review 04)**.

§ 87(2)(b) testified that she was handcuffed and escorted into § 87(2)(b)'s bedroom on the first floor where she saw that unspecified belongings had been pulled out of § 87(2)(b)'s closet. § 87(2)(b) was arrested, and when she ultimately returned home, she observed that the clothing from the closet in her bedroom on the first floor had been removed. § 87(2)(b)'s bed had also been moved **(Board Review 06)**.

§ 87(2)(b) testified that when the officers breeched the basement door, she heard § 87(2)(b) yell, "Oh my god, oh Jesus!" § 87(2)(b) ran down stairs to see what was happening, and ran back upstairs upon seeing the officers. § 87(2)(b) yelled, "Daddy! Daddy! They're busting through the door!" § 87(2)(b) remained in her bedroom on the second floor and observed officers search the second floor. After the officers left, § 87(2)(b) went downstairs and saw that unspecified items in the basement had been moved around **(Board Review 05)**.

§ 87(2)(b) was not present during the execution of the search warrant. **(Board Review 06)**

§ 87(2)(b) provided a cell phone video which shows her on the first floor pointing the camera down into the basement while officers were inside of the home. **(Board Review 03)**

Det. Castellano testified that he encountered § 87(2)(b) in the basement and asked him where § 87(2)(b) was. § 87(2)(b) told Det. Castellano that he was not home and told Det. Castellano, "You can go look if you want to." Det. Castellano and the additional officers then searched the areas on the first and second floor where an individual could reasonably hide, including closets and under beds. The officers limited their search to anywhere a person could reasonably hide. Det. Castellano did not remove any clothes from inside of the closet while searching for § 87(2)(b) and Det. Castellano elaborated that § 87(2)(b) is a "big guy," and would have stuck out from underneath clothes had he been hiding under them **(Board Review 09)**.

Sgt. Anghel and Det. Quallis were both consistent in their statements that upon entering the home, individuals were walking freely between the basement and the first floor, and that the first and second floor were subsequently searched for § 87(2)(b). The officers limited their search to anywhere a person could reasonably hide **(Board Review 10, 11)**. Det. Goddard's statement was generally consistent with the other officers, with the exception that he testified the field team entered the home through the ground level front door and not the basement door. However, given the consistent statements of the victims and all of the other officers, and the cell phone video showing officers in the basement, the investigation determined by a preponderance of the evidence that the officers entered the home through the basement entrance. **(Board Review 11)**

The search warrant, which was issued on § 87(2)(b), and signed by the Honorable § 87(2)(b), states that officers could enter and search the basement of § 87(2)(b) in Brooklyn before May 18, 2018, between the hours of 6:00 a.m. and 9 p.m., for § 87(2)(b) and evidence of narcotics crimes (**Board Review 13**).

Warrantless searches of a home are presumptively unreasonable under the Fourth Amendment. Officers may as a precautionary matter and without probable cause or reasonable suspicion, look in closets and other spaces immediately adjoining the place of arrest from which an attack could be immediately launched. A protective sweep is defined as a quick and limited search of a premises, conducted to protect the safety of a police officer or others. It is narrowly confined to a cursory visual inspection of those places in which a person might be hiding. People v. Harris, 141 A.D.3d 1024 (App. Div. 2016) (**Board Review 14**).

§ 87(2)(g)

§ 87(2)(g)

Allegation – F Abuse of Authority: Sergeant Alexandru Anghel searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) testified that after the officers searched the basement floor, Sgt. Anghel showed him a plate containing drug residue. § 87(2)(b) told Sgt. Anghel that he could call § 87(2)(b). Sgt. Anghel told § 87(2)(b) to do so. § 87(2)(b) told Sgt. Anghel that his phone was upstairs in his bedroom on the second floor. An officer went upstairs to retrieve the phone, soon returned, and handed the phone to § 87(2)(b) who then called § 87(2)(b). Neither § 87(2)(b) nor § 87(2)(b) mentioned this allegation in their statements.

Sgt. Anghel testified that the phone was recovered from § 87(2)(b)'s person while he was being searched in the basement prior to removing him from the house and placing him inside of the prisoner van (**Board Review 10**). Conversely, Det. Castellano testified that § 87(2)(b) obtained § 87(2)(b)'s phone from the second floor of the home and brought it to the basement, not Sgt. Anghel (**Board Review 09**).

§ 87(2)(g)

Allegation G – Discourtesy: At § 87(2)(b) in Brooklyn, Sergeant Alexandru Anghel spoke discourteously to § 87(2)(b)

Allegation H – Discourtesy: At the 75th Precinct stationhouse, Sergeant Alexandru Anghel spoke discourteously to § 87(2)(b)

Allegation I – Discourtesy: At the 75th Precinct stationhouse, Sergeant Alexandru Anghel spoke discourteously to § 87(2)(b)

Allegation J – Discourtesy: At the 75th Precinct stationhouse, Detective Cameel Quallis spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that after the officers entered the home, Sgt. Anghel stated, “We don’t have to tell you what the fuck we’re here for.” § 87(2)(b) learned that the search warrant was for narcotics, and asked Sgt. Anghel why he told him that the officers were looking for § 87(2)(b) for a prior domestic violence incident. Sgt. Anghel responded, “I told you before, we don’t have to fucking tell you what we’re here for.” § 87(2)(b) said had Sgt. Anghel told him that they had a warrant, he would have let the officers in. Sgt. Anghel said, “Well you didn’t let us the fuck in, and that’s why you’re all going to be arrested.” Sgt. Anghel showed § 87(2)(b) the search warrant. § 87(2)(b) pointed out that the search warrant specified the basement floor, and that the officers entered the first and second floors. Sgt. Anghel replied, “This is what the fuck is going on in your apartment, in your house, in the basement.” Sgt. Anghel found a plate with razor blades, told § 87(2)(b) that it was used for crack cocaine, and asked, “This is what you allow in your fucking house?” § 87(2)(b) told Sgt. Anghel that the officers were “playing games,” and it was the reason he did not trust the police. Sgt. Anghel replied, “Shut the fuck up. You’re all being arrested unless your son shows up.”

§ 87(2)(b) said he ultimately arrived at the 75th Precinct stationhouse to turn himself in, and asked if his family would be released. Sgt. Anghel replied, “Your fucking family isn’t going anywhere.” Upset, § 87(2)(b) punched and shattered a window that was in the holding cell area. Sgt. Anghel stated to § 87(2)(b) “Look at your son, you can’t control your fucking son.” Det. Quallis told § 87(2)(b) “Why didn’t you turn yourself in then? You got your fucking family sitting here. It’s 11 p.m. now and you have your family sitting here since 8 p.m.” **(Board Review 04)**

§ 87(2)(b) testified that she did not hear any officers use profanity at § 87(2)(b). At the 75th Precinct stationhouse, after § 87(2)(b) broke the window, Sgt. Anghel stated, “You want to break the fucking glass? All of you are getting fucking arrested now.” **(Board Review 06)** § 87(2)(b) testified that she did not hear any officers use profanity **(Board Review 05)**. § 87(2)(b) did not allege that officers used profanity during this incident **(Board Review 07)**. § 87(2)(b) provided a sworn statement; however, he was not present during the search warrant execution, and he refused to discuss anything that occurred at the stationhouse on the advice of his criminal attorney **(Board Review 08)**.

Sgt. Anghel and Det. Quallis denied making all of the alleged discourteous statements and no officer interviewed acknowledged hearing them do so **(Board Review 09, 10, 11, 12)**.

§ 87(2)(g)

Allegation K – Abuse of Authority: At § 87(2)(b) in Brooklyn, Detective Rene Castellano damaged § 87(2)(b)'s property.

§ 87(2)(b) testified that officers returned to § 87(2)(b) to obtain his prosthetic leg for him, and that when he received it from the officers, the ankle was bent and the foot had been removed (**Board Review 08**). § 87(2)(b) testified that Det. Castellano returned to the home and asked for § 87(2)(b)'s prosthetic leg. § 87(2)(b) allowed Det. Castellano back into the basement to retrieve the prosthetic leg, and when Det. Castellano left, the leg was intact.

§ 87(2)(b) later learned that the leg had been damaged by the time § 87(2)(b) received it (**Board Review 05**). § 87(2)(b) testified that he learned from § 87(2)(b) that when Det. Castellano removed the prosthetic leg from the home, it was in multiple pieces, though he did not personally see the prosthetic leg (**Board Review 06**). No civilian witnessed Det. Castellano damage § 87(2)(b)'s prosthetic leg.

Det. Castellano testified that he retrieved the intact prosthetic leg from the house and brought it to § 87(2)(b) however, § 87(2)(b) stated that he could not use the prosthetic leg without the sleeve to go over the remaining portion of his leg, which attached it to his person. § 87(2)(b) was not allowed to keep the leg in Central Booking if it was not attached to him, so Det. Castellano vouchered the prosthetic leg for safe keeping. Det. Castellano denied damaging § 87(2)(b)'s prosthetic leg (**Board Review 09**). Sgt. Anghel, Det. Goddard, and Det. Quallis all denied seeing Det. Castellano do so (**Board Review 10, 11, 12**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party. (**Board Review 16**)
- § 87(2)(b) has been a party to one additional CCRB complaint:
 - § 87(2)(b)
- § 87(2)(b) has been a party to two additional CCRB complaints:
 - § 87(2)(b)
- § 87(2)(b) has been party to two additional CCRB complaints:

- § 87(2)(b) [REDACTED]
- [REDACTED]
- § 87(2)(b) [REDACTED] has been a party to five additional CCRB complaints:
 - § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- Det. Castellano has been a member-of-service for 10 years and has been a subject in seven additional CCRB complaints and 18 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- Sgt. Anghel has been a member-of-service for 14 years and has been a subject in 11 additional CCRB complaints and 19 allegations, one of which was substantiated:
 - 201603032 involved a substantiated allegation of abuse – strip search. The Board recommended Command Discipline – A, and the NYPD imposed Command Discipline – A.
- Det. Quallis has been a member-of-service for eight years and has been a subject in five additional CCRB complaints and nine allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] have each filed a Notice of Claim with the City of New York claiming false arrest and battery, unlawful detention, personal injuries, a violation of civil rights, and malicious prosecution. They are each seeking five million dollars as redress. A subpoena has been submitted for the 50-H hearing transcripts and will be added to the casefile upon receipt. **(Board Review 16, 17, 18, 23)**
- § 87(2)(b) [REDACTED] filed a Notice of Claim with the City of New York claiming negligence, unlawful detention, personal injuries, and a violation of civil rights. She is seeking five million dollars as redress. A subpoena has been submitted for the 50-H hearing transcript and will be added to the casefile upon receipt. **(Board Review 19)**
- As of May 31, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by § 87(2)(b) [REDACTED] in regards this to complaint. **(Board Review 20)**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 13

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date